



**HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR**

D.B. Civil Writ Petition No. 20057/2025

RAJMER RMCTA Welfare Society, Registered Office At Flat No. 102, Medical College Campus, Near Sanwali Circle, Sikar (Raj.) Through Its Authorized Signatory And Life Member Dr. Vinod Kumar S/o Shri Ramesh Chand Yadav Aged About 39 Years R/o Chawandi Khurd, Rabhana, Sub District Tijara, District Alwar (Rajasthan)



----Petitioner

Versus

1. State Of Rajasthan, Through Its Secretary, Medical Education Department, Government Of Rajasthan, Government Secretariat, Jaipur.
2. Rajasthan Medical Education Society, Jaipur, Through Commissioner, Chikitsa Shiksha Bhawan, Govind Marg, Adarsh Nagar, Jaipur (Rajasthan)
3. Director, Rajasthan Medical Education Society, Jaipur, Chikitsa Shiksha Bhawan, Govind Marg, Adarsh Nagar, Jaipur (Rajasthan)

----Respondents

For Petitioner(s)	:	Mr.Akhil Simlote, Adv. with Mr.Dikshant Jain, Adv. Mr.Ashvini Raj Tanwar, Adv.
For Respondent(s)	:	Mr.Vigyan Shah, AAG with Mr.Rohit Tiwari, AAAG.

HON'BLE THE ACTING CHIEF JUSTICE MR. SANJEEV PRAKASH SHARMA

HON'BLE MRS. JUSTICE SANGEETA SHARMA

Order

19/12/2025

1. One of the contentions raised by learned counsel for the petitioner is that the employees were appointed in the year 2021, 2022 and 2023 while the earlier Rajasthan Medical Service (Collegiate Branch) Rules, 1962 were Invoked. The Rajasthan Medical Education Society Jaipur Personnel's (Recruitment and other Conditions) Employment Rules, 2017 (for short 'the Rules of 2017') came into force wherein it was provided that the post of Associate Professor shall be filled 100% by promotion from

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amongst those appointed as Associate Professors of the concerned specialty who have acquired experience as prescribed by the MCI for promotion to the said post.

2. In 2022, with effect from the notification dated 21.09.2022, the Rules of 2017 were repealed. However, he submits that even as per the Rajasthan Medical Education Society Employees (Recruitment and Promotions) Rules, 2022 (hereinafter 'the Rules of 2022') the post of Associate Professor as per the schedule was to be filled 100% by promotion from Assistant Professor, having three years experience on the post mentioned in Column No.6 with two research publications in indexed journal.

3. The Rules of 2022 are still invoked while the another Rajasthan Medical Education Society Medical Teachers (Recruitment, Promotions and Pay) Rules, 2024 (hereinafter 'the Rules of 2024') have been brought into force for the Medical Teachers recruited on or after 01.08.2024.

4. Rule 46 of the Rules of 2024 provides for the miscellaneous matters (recruitment, promotions and pay of medical teachers) for which these rules are promulgated the effect and operation of the provisions of the Rules of 2022 shall cease to have effect from 01.08.2024. Thus, with effect from 01.08.2024, the medical teachers who are recruited would be governed by the new Rules of 2024 and the Rules of 2022 would have no application. However, since the employees who have been appointed under the Rules of 2017 and the Rules of 2022, are not governed under the Rules of 2024. The requirement as laid down under the Rules of 2022 of three years experience would continue to operate for making the promotions.



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5. In the circumstances, *prima facie* the submission of learned counsel that the direct recruitment cannot be made on the post of Associate Professor seems to be inconsonant with Rules of 2022. So far as the Rules of 2024 are concerned the direct recruitment is allowed subject to the non-availability of candidates by way of promotion. Thus, *prima facie* we are of the view that after the State conducts an exercise of promotion of the existing employees and still posts are lying vacant, they can always go for direct recruitment.

6. Put up after four weeks. Reply be filed in the meantime.

(SANGEETA SHARMA),J

(SANJEEV PRAKASH SHARMA),ACTING CJ

Himanshu Soni/294

